

Plaintiff seeks preliminary approval of the parties' class action and PAGA settlement. No opposition has been filed.

The court has broad discretion in determining whether a class action settlement is (1) fair and reasonable, (2) the class notice is adequate, and (3) certification of the class is proper. (*In re Cellphone Fee Termination Cases* (2010) 186 Cal.App.4th 1380, 1389.) Further, the court reviews the moving papers along with the entirety of the court file to determine that the settlement is genuine, meaningful, and consistent with the underlying purposes of the PAGA-related statute. (Lab. Code, § 2699(l); *O'Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110.) The court must also determine whether the PAGA settlement appears fundamentally fair, reasonable, and adequate. (*Ibid.*)

The court has carefully considered the class action and PAGA settlement agreement and plaintiff's moving papers filed in connection with the motion, as well as the entire court file. The court determines a sufficient showing has been made that the settlement is fair, reasonable, genuine, meaningful, and consistent with the purpose of PAGA.

For the purposes of the settlement, the court hereby certifies the class for the purposes of settlement as, "all current and former non-exempt California employees of Defendant who worked for Defendant at any time during the period from February 21, 2021 through the date the court grants preliminary approval of the settlement [May 12, 2026] who were employed in positions categorized as 'Mountain Positions.'"

The court preliminarily approves the class action and PAGA action settlement agreement attached as Exhibit B to the declaration of counsel Otkupman with one change as to administration costs. While the moving papers request settlement administration costs of up to \$25,000, plaintiff submits evidence supporting administration costs of \$9,450 and plaintiff submitted a proposed order on May 4, 2026 including costs of the lesser amount of \$9,450. The court approves settlement administration costs of \$9,450.

The court also approves the proposed form of noticed attached as Exhibit 1 to the proposed order submitted on May 4, 2026. The court approves the proposed request for exclusion form attached as Exhibit D to the Otkupman declaration.

The court appoints and designates Christopher Lewis as the class representative. The court appoints and designates Otkupman Law Firm, A Law Corporation as class counsel for the purpose of settlement. The court appoints and designates ILYM Group, Inc. as the settlement administrator. The court also incorporates by reference all findings and orders set forth in the Proposed Order submitted on May 4, 2026.

The final approval hearing is scheduled for **November 10, 2026 at 8:30 a.m. in Department 42**. The motion for final approval shall be filed and served in accordance with Code of Civil Procedure section 1005(b).

15. **S-CV-0054943 Haviland, Elizabeth v. The Life is Good Co.**

Defendant is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Demurrer to the First Amended Complaint ("FAC")

Defendant demurs to the FAC contending it fails to state a cause of action pursuant to Code of Civil Procedure section 430.10(e). Plaintiff opposes the demurrer.

A party may demur when a pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.) Grounds for demurrer to an amended complaint shall not lie if those grounds could have been raised by prior demurrer. (Code Civ. Proc., § 430.41, subd. (b).)

The court has carefully reviewed the FAC and determines plaintiff adequately addressed the grounds on which the demurrer to the initial complaint was sustained. The court declines to consider defendant's new arguments that could have been raised by the prior demurrer. In summary, the court finds the FAC sufficiently alleges a cause of action under California's Invasion of Privacy Act.

The demurrer is overruled and defendant shall file and serve a responsive pleading by May 22, 2026.

Motion to Quash

The motion to quash is dropped from calendar as no moving papers were filed with the court.

16. S-CV-0056291 Fisher, Jeffrey P v. Hansen, Brenda Lee

The petition to confirm appraiser's award is dropped as moot in light of the order on stipulation filed on May 5, 2026.

The court vacates the hearing on the petition to confirm appraiser's award scheduled for September 8, 2026 in light of the order on stipulation filed on May 5, 2026.